



DEPARTMENT OF LABOR AND EMPLOYMENT

Division of Labor Standards and Statistics

APPEALS' STANDING ORDER FOR ADMINISTRATIVE PROCEDURE ACT REVIEW

7 CCR 1103-21

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

Adopted December 8, 2025; effective February 1, 2026.

Rule 1. Statement of Purpose and Authority

- 1.1 Authority and relation to other orders. The Appeals' Standing Order for Administrative Procedure Act (APA) Review (SOAR) is issued under the general labor law implementation and authority and as enforcement of C.R.S. Title 8, Articles 1 and 3 (2025), and are intended to be consistent with the rulemaking and hearing and determination requirements of the State Administrative Procedure Act (APA), C.R.S. §§ 24-4-103 and 105. These SOAR Rules are promulgated pursuant to express authority including, but not limited to, C.R.S. §§ 8-1-107, -118, and 24-4-105 ("Any agency conducting a hearing, any administrative law judge, and any hearing officers shall have the authority to . . . regulate the course of the hearing, set the time and place for continued hearings, and fix the time for the filing of briefs and other documents . . . and take any other action authorized by agency rule consistent with this article 4 or in accordance, to the extent practicable, with the procedure in the district courts."). These Rules supplement the procedures set forth in the APA, specifically C.R.S. § 24-4-105, as applied to requests for the agency to review determinations under statutes to which the APA applies, including, but not limited to, the Equal Pay for Equal Work Act (EPEWA), C.R.S. §§ 8-5-101 et seq.; the Employment Opportunity Act, C.R.S. § 8-2-126; the Social Media and the Workplace Law, C.R.S. § 8 2 127; the Colorado Chance to Compete Act, C.R.S. § 8-2-130; the Job Application Fairness Act (JAFA), C.R.S. § 8-2-131; and the Keep Jobs in Colorado Act, C.R.S. § 8 17 101 et seq.
- 1.2 Separability. These Rules are intended to remain in effect to the maximum extent possible. If any part of a rule (including any section, sentence, clause, phrase, word, or number) is held invalid, **(A)** the remainder of the rule remains valid, and **(B)** if the provision is held not wholly invalid, but merely in need of narrowing, the provision should be retained in narrowed form.
- 1.3 The Director of the Division of Labor Standards and Statistics in the Department of Labor and Employment has the authority to enforce the statutes cited in Rule 1.1 and other statutes under the Division's purview subject to the APA § 24-4-105 and has the authority to enforce these Rules.

Rule 2. Appeal Filings

- 2.1** Appeals of the Division determinations of claims governed by the APA's hearing and decision provision, C.R.S. § 24-4-105, are subject to these rules. Any party to the claim may appeal the Division's determination to a hearing officer in the Appeals Unit. No appeal will be heard and no hearing will be held unless the appeal is received by the Division within 35 calendar days of the date the determination is sent. It is the responsibility of the party filing the appeal to ensure the appeal is received by the Division within the 35-day filing deadline. If no request is received by the Division within the 35-day period, the Division's determination is final.

Rule 3. Form of Appeal

- 3.1** Valid Appeals. Parties are encouraged, though not required, to use the Division's appeal form. A valid appeal is a written statement that is timely filed with the Division, explains the clear error in the determination that is the basis for the appeal, is not frivolous, and has been signed by the party or the party's authorized representative.
- 3.2** No Frivolous Appeals. An appeal is frivolous if it fails to allege an error that could result in the reversal or modification of the determination or otherwise is manifestly insufficient or futile.

Rule 4. Standard of Review on Appeal

- 4.1** The hearing officer will decide whether the Division's determination was based on a clear error of fact or law. Clear error means that either the correct facts were not known at the time the determination was made, or the law was applied incorrectly.

Editor's Notes

History

New rule eff. 02/01/2026.